

THE PUNJAB FORENSIC SCIENCE AUTHORITY ACT 2025

(XVIII of 2025)

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¹THE PUNJAB FORENSIC SCIENCE AUTHORITY ACT 2025
(XVIII of 2025)

[24th March, 2025]

An
Act

to establish the Punjab Forensic Science Authority for forensic examination of documents, materials, equipment, impressions or other objects.

It is necessary to provide for establishment of an Authority for forensic examination of documents, materials, equipment, impressions or other objects; for scientific opinion on different types of evidential material referred to it by the investigating agencies or any other authorized authority for forensic and tendering its expert opinion thereon and for the matters ancillary thereto and connected therewith.

Be it enacted by Provincial Assembly of the Punjab as follows:

1. Short title, extent and commencement.– (1) This Act may be cited as the Punjab Forensic Science Authority Act 2025.

- (2) It extends to whole of the Punjab.
- (3) It shall come into force at once.

2. Definitions.– (1) In the Act:

- (a) “Act” means the Punjab Forensic Science Authority Act 2025;
- (b) “Authority” means the Punjab Forensic Science Authority established under section 3 of the Act;
- (c) “concerned officer” means an officer who carries out test or renders opinion;
- (d) “Code” means the Code of Criminal Procedure, 1898 (V of 1898);
- (e) “Director General” means the Director General of the Authority appointed under the Act;
- (f) “expert” means a person having knowledge or skills in a particular area of forensic science and includes a qualified foreign expert in the field of forensic science;
- (g) “forensic material” includes biological sample, trace evidence, such as hair and fiber, paint and polymer, glass, firearm, tool mark, document, material, equipment, impression, latent fingerprints, footprints, handwriting, ballistics, currency, burnt remains, alcohol, drugs, narcotics and poison, photography at crime scene, pesticide, electronic or cybercrime, nuclear deoxyribonucleic acid, short tandem repeat, video, fingerprinting, voice identification, human or animal semen, blood stain pattern, arson and explosive or any other object connected with the commission of an offence, a civil cause or any other proceedings, polygraph and spectrograph as instrument to conduct forensic analysis;
- (h) “Government” means Government of the Punjab;
- (i) “offence” means an act of commission or omission punishable under the Act or any law for the time being in force;

¹This Act was passed by Provincial Assembly of the Punjab on 14 March 2025; and was assented to by Governor of the Punjab on 21 March 2025; and was published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, pp. 3619-3625.

- (j) “prescribed” means prescribed by the rules or regulations;
- (k) “regulations” means the regulations framed under the Act; and
- (l) “rules” means the rules made under the Act.

(2) A word or an expression used but not defined in the Act shall have the same meanings as defined in the Code.

3. Establishment of Authority.– (1) The Government shall, by notification in the official Gazette, establish the Authority to be known as the Punjab Forensic Science Authority.

(2) The Authority shall be a body corporate having perpetual succession and a common seal, with power to enter into contract, acquire or dispose of property, and may by its name sue or be sued.

(3) The Authority shall consist of:

(a)	Chief Minister	Chairperson
(b)	a person to be nominated by the Chief Minister	Vice-Chairperson
(c)	Secretary to Government, Home Department	Member
(d)	Secretary to Government, Finance Department	Member
(e)	Secretary to Government, Law and Parliamentary Affairs Department	Member
(f)	Secretary to Government, Planning and Development Board	Member
(g)	Secretary to Government, Public Prosecution Department	Member
(h)	Inspector General of Police or his nominee	Member
(i)	one expert in the field of audio visual analysis	Member
(j)	one expert in the field of computer forensic	Member
(k)	one expert in the field of criminology	Member
(l)	one expert in the field of molecular sciences	Member
(m)	one expert in the field of pathology	Member
(n)	Director General of the Authority	Member/Secretary

(4) The Authority may co-opt an expert in its meeting for its assistance on a particular matter for the purposes of the Act but such co-opted expert shall not have any right to vote.

(5) The experts at clauses (i) to (m) of sub-section (1) shall be appointed, for a term of five years by the Government who shall serve during the pleasure of the Government.

(6) The experts at clauses (i) to (m) of sub-section (1), after expiry of their term, may, subject to fulfilling criteria, be appointed for second term but no such expert shall be appointed thrice as expert member of the Authority.

4. Meetings of the Authority.– (1) The Secretary of the Authority shall, on the direction of Chairperson, call a meeting of the Authority which shall be held at least once in a quarter and six Members shall constitute a quorum for a meeting of the Authority.

(2) The Chairperson, or, in his absence, Vice-Chairperson shall preside over the meeting.

(3) The Authority shall take its decision by majority of its Members present and voting and in case of a tie, the person presiding over the meeting shall have a casting vote.

(4) In case, the Chairperson and Vice Chairperson, both are unavailable, the Member elected by rest of the Members of the Authority present in the meeting shall preside over the meeting of the Authority.

(5) The Secretary of the Authority shall maintain complete record of minutes of meeting and decisions of the Authority in the prescribed manner.

(6) The proceedings of a meeting of the Authority shall not be invalid merely on account of any vacancy or defect in the constitution of the Authority.

5. Powers and functions of the Authority.– (1) Subject to the provisions of the Act, rules and regulations framed thereunder, the Authority may exercise such powers and take such measures as may be necessary for carrying out the purposes of the Act.

(2) Without prejudice to the generality of the foregoing sub-section, the Authority shall:

- (a) formulate standards, procedures, process and guidelines for collection, examination and transmission of forensic material;
- (b) render its expert opinion after examination of forensic material;
- (c) propose advancement in forensic techniques and suggest use of suitable scientific instruments for examination of forensic material;
- (d) seek clarification from the person involved in collection or handling of forensic material or crime scene in the prescribed manner;
- (e) regulate for collection, preservation and handling of forensic material by the crime scene investigators;
- (f) notify crime scene investigators for attending crime scene;
- (g) devise a mechanism for crime scene investigators to receive the case docket and establish chain of custody of samples;
- (h) authorize its officer to collect forensic material that requires special expertise or scientific methods for collection and preservation;
- (i) maintain record for examination of forensic material, including record pertaining to identity of a person connected with or accused of an offence, in the prescribed manner;
- (j) promote general awareness through print, electronic and social media or any other source of communication on matters relating to forensic;
- (k) establish one or more agency for special purposes in the prescribed manner;
- (l) establish labs, training institutes at each divisional headquarter or at any other place;

- (m) procure, operate and maintain scientific instruments, machinery, equipment or material as may be required for proper discharge of its functions;
- (n) acquire land for establishment of scientific or forensic labs or training institutes;
- (o) fix the amount of analysis fee or charges where applicable;
- (p) exercise its functions as far as possible, in accordance with the well-established scientific principles and international best practices;
- (q) hire or appoint advisors, consultants or experts in such manner and on such terms and conditions as may be prescribed; and
- (r) perform such other functions as may be ancillary, or as may be prescribed to carry out the purpose of the Act.

(3) The Authority may delegate any or all of its powers and functions, except approval of annual budget, to Director General or its officer or agency of the Government.

6. Constitution of committees and establishment of panel.– (1) The Authority may constitute committees comprising of such number of members as it may provide, for the purposes of the Act and the committee shall also record minutes of its meeting.

(2) The Authority may establish a panel consisting of as many scientific experts as it may deem fit and appropriate for the purposes of the Act.

7. Appointment of Director General.– (1) On the recommendation of the Search Committee, to be constituted by the Government, Director General shall be appointed by the Chief Minister for a period upto five years on such terms and conditions as may be determined by the Chief Minister, however, Director General shall hold office during the pleasure of the Chief Minister.

(2) The terms and conditions of service of the Director General determined by the Chief Minister shall not be varied during his tenure in office.

(3) The Director General may tender his resignation to the Chief Minister and shall cease to hold office upon acceptance of his resignation.

(4) When the office of the Director General is vacant, the Chief Minister may appoint an officer from Pakistan Administrative Service or Provincial Management Service having BS-20, as Director General, till the regular appointment of the Director General under this section.

8. Powers and functions of Director General.– (1) The Director General shall be the Chief Executive Officer and principal accounting officer of the Authority and competent to enter into contracts on behalf of the Authority.

(2) The Director General may delegate any of his financial powers to an officer of the Authority subject to approval of the Authority.

(3) The Director General shall exercise such administrative and financial powers as are provided in the Act, or as may be prescribed or delegated to him by the Authority.

(4) The Director General, subject to control of the Authority, shall be responsible for accomplishing the objectives of the Act and for implementation of the provisions of the Act, rules and regulations.

9. Employees of the Authority.– (1) The Authority may, for performance of its functions, employ such officers, officials and other employees, on such terms and conditions as it may prescribe.

(2) The Authority may provide for grant of such allowances, leave, pension, gratuity, provident fund and other benefits and facilities to its employees as it may prescribe.

(3) The employees of the Authority shall be deemed to be public servants within the meanings of section 21 of the Pakistan Penal Code, 1860 (XLV of 1860).

10. Directions to the Authority.— The Government may give general or special directions to the Authority which shall comply with such directions.

11. Fund.— (1) There shall be a Fund to be known as the Punjab Forensic Science Authority Fund to be administered and controlled by the Authority.

(2) The Fund shall consist of:

- (a) funds or grants made by the Government or Federal Government or their authorities or agencies;
- (b) fee and charges collected by the Authority for rendering special services in the field of forensic science;
- (c) income from lease or sale of property of Authority; and
- (d) income from any other source.

(3) The Fund shall be invested and maintained in such manner as may be prescribed.

(4) The Fund shall be utilized to meet the expenses of the Authority in connection with its functions under the Act.

(5) The Authority may obtain loan and float bonds to raise its Funds.

12. Budget and accounts.— (1) The Director General shall, before the commencement of a financial year, prepare a statement of estimated receipts and expenditure of the Authority for the financial year and submit to the Authority for approval.

(2) The Authority shall maintain proper accounts and other records relating to its financial affairs including its income and expenditures and its assets and liabilities in such form and manner as may be prescribed.

(3) The Authority may open and maintain its accounts at such scheduled bank as may be prescribed.

(4) After the end of each financial year, the Authority shall, in the prescribed manner, prepare for that financial year statements of account of the Authority, which shall include a balance-sheet and all kinds of account of income and expenditure.

13. Audit.— (1) The Auditor General of Pakistan shall, annually, audit the accounts of the Authority.

(2) The Government shall, in addition to the audit under sub-section (1), cause the accounts of the Authority annually audited, by a chartered accountant or a firm of chartered accountants.

(3) The auditor appointed under sub-section (2) shall be provided such access to the books, accounts and other documents as may be considered necessary for audit of accounts.

(4) The auditor shall submit annual or any special audit report to the Authority which shall, under intimation to the Government, take appropriate remedial action in light of audit report.

14. Experts.– (1) The Authority may appoint such experts as it may deem necessary in such manner and having such qualifications as may be prescribed.

(2) The opinion of the expert appointed under the Act shall be admissible under section 510 of the Code and relevant under Article 59 of the Qanun-e-Shahadat, 1984 (10 of 1984).

(3) The Authority shall not entrust examination of a forensic material to a person who has been convicted of an offence related to giving false evidence under any law for the time being in force.

15. Expert opinion.– (1) A court or tribunal may send to the Authority, a forensic material related to investigation or proceedings before it, for examination and expert opinion.

(2) The Authority or on its behalf Director General shall authenticate and send expert opinion to a court or tribunal in the prescribed manner.

(3) An expert opinion shall carry the name, designation and unique identification code of the expert who conducted the examination.

16. Clarification in case of certain opinion.– (1) If an expert opinion is not clear, the court or tribunal may refer it to the Authority for clarification on a specific question.

(2) The Authority shall, on receipt of reference, send clarification on the question to the court or tribunal.

(3) If the condition of the forensic material or any other fact does not allow submission of a clear answer to the question, the concerned officer shall state its inability to answer the question.

17. Re-examination of forensic material.– (1) A person affected by the opinion of an expert, may, for a sufficient cause, submit an application, for re-examination, before the court or tribunal before which opinion is rendered or submitted by the Authority.

(2) If the court or tribunal is satisfied that there are sufficient grounds for re-consideration of the opinion, it may, for reasons to be recorded in writing, direct the Authority to re-examine the forensic material.

(3) The Director General shall, upon receipt of direction under sub-section (2), constitute a panel of three or more experts to re-examine forensic material or refer the same to a forensic examination facility for examination and opinion.

(4) The Director General shall submit the findings of the panel of experts or forensic examination facility, as the case may be, to the court or tribunal.

18. Offence.– (1) If an expert or official of the Authority knowingly or negligently renders false, incorrect or misleading opinion or evidence before a court or tribunal, he shall be punished with imprisonment which shall not be less than five years and fine not less than five hundred thousand rupees.

(2) An offence under the Act shall be non-bailable and triable by a Court of Sessions in the manner as provided in the Code.

(3) The court shall not take cognizance of an offence under the Act unless Director General, makes a complaint, in writing, to it in the manner and form as may be prescribed.

19. Appeal.– An expert or official aggrieved by an order or sentence passed under section 18, may, within thirty days of its passing, prefer an appeal to the Lahore High Court.

20. Annual performance report.— (1) The Authority shall submit its annual performance report to the Government, before July, 31st in a year.

(2) The Government shall, within sixty days of receipt of report under sub-section (1), arrange for its laying before the Provincial Assembly of the Punjab.

21. Act to be read in conjunction with other laws.— The provisions of the Act shall be read in conjunction with and not in derogation of any other law for the time being in force.

22. Power to make rules.— The Government may, by notification in official Gazette, make rules for giving effect to the provisions of the Act.

23. Power to frame regulations.— Subject to the Act, the Authority may, by notification in official Gazette, frame regulations for carrying out the purposes of the Act.

24. Indemnity.— No suit or legal proceeding shall lie against the Authority or its Member, officer or employee in respect of anything done in good faith or purporting to have been done or intended to be done under the Act, rules and regulations.

25. Absorption in the Authority.— (1) The Government may, by notification in the official Gazette, absorb in the Authority, a body, agency, bureau, laboratory or any other facility of the Government concerned with examination and rendering expert opinion about forensic material, in such mode and manner as may be prescribed.

(2) An employee of the body, agency, bureau, laboratory or other facility of the Government absorbed in the Authority under sub-section (1), may be given one time option to be absorbed in the Authority:

Provided that the option, once exercised under sub-section (2), shall be final and irrevocable in any manner and those who do not opt to be absorbed, shall be repatriated forthwith.

(3) The employees who opt to be absorbed in the service of the Authority shall be absorbed and appointed in the service of the Authority subject to fulfilling such criteria and in such manner as may be prescribed.

26. Removal of difficulties.— If any difficulty arises as to give effect to the provisions of the Act, the Government may, subject to the provisions of the Act, pass such orders as may be necessary to remove such difficulties.

27. Repeal.— (1) The Punjab Forensic Science Agency Act, 2007 (XII of 2007) is hereby repealed.

(2) Notwithstanding the repeal under sub-section (1), the Punjab Forensic Science Agency shall continue to perform its functions mandated under the repealed Act and its employees shall continue to serve under the agency unless and until the agency is absorbed in the Authority under the Act.

(3) In case the Punjab Forensic Science Agency is absorbed in the Authority under section 25, all its employees, regular or on contract basis, on such absorption, shall stand transferred to the service of the Authority:

Provided that the Authority shall, within three hundred and sixty-five days from absorption of the Punjab Forensic Science Agency, give such transferred employees an opportunity to opt for repatriation to their parent departments as one-time option.

(4) The terms and conditions of the employees, transferred under sub-section (3), shall not be less favourable than those available to them before their transfer to the Authority.